

Court No. - 29

Case :- CRIMINAL MISC. WRIT PETITION No. - 14697 of 2014

Petitioner :- Kripa Shanker @ Kripal Pathak And Another

Respondent :- State Of U.P. Thru Secy. And 2 Others

Counsel for Petitioner :- K.S. Ojha

Counsel for Respondent :- Govt.Advocate

Hon'ble V.K. Shukla,J.

Hon'ble Shashi Kant,J.

Heard learned counsel for the petitioners and learned A.G.A. for the State.

Petitioners have approached this Court with a request to quash the First Information Report dated 24.07.2014, registered as Case Crime No. 581 of 2014, under Section 135 of Electricity Act at Police Station - Chopan, District - Sonbhadra.

This Court has the occasion to peruse the F.I.R. and the F.I.R. in question does disclose a cognizable offence, in view of this, there is no occasion for this Court to quash the F.I.R., as has been prayed on behalf of petitioners, as such, prayer made on the said score is refused by this Court.

Learned counsel for the petitioners contended that the offence in question, as has been alleged to have been committed by the petitioners, is under Section 135 of the Electricity Act and for the same even if the charges are found to be proved sentence of more than 7 years cannot be awarded and, in view of this, mechanically arrest should not be effectuated by the police personnel. Learned counsel for the petitioners next contended that the offence in question, as has been alleged to have been committed by the petitioners, is compoundable also.

The fact of the matter is that till date arrest has not been effectuated and this is mere apprehension of the petitioners that they would be arrested in breach of provisions as contained under Section 41(1)(b) read with Section 41-A of the Cr.P.C. Once there is statutory provision provided for, then it is always expected that the said provisions would be adhered to and in case there is any violation of the same, complaint can also be made before the Magistrate concerned to remedy the situation and if petitioner(s) offence is compoundable, they may seek remedy as provided

under the provisions of Electricity Supply Code, 2005.

In view of above, it is hereby directed that in case arrest of petitioners is to be effectuated and the offence, in which they are wanted, will not entail sentence of more than 7 years, then in that event concerned police personnel should deal with the matter in compliance of the provisions as contained under Section 41(1)(b) read with Section 41-A of the Cr.P.C.

Writ petition stands disposed of.

Order Date :- 28.8.2014

A. Verma

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In Ref.: Criminal Misc. Correction Application No. 300450 of 2014.

Correction application is allowed.

In our order dated 28.08.2014, the name of Sri Narendra Kumar Tiwari, Advocate be shown from the side of respondent no. 3.

Order Date :- 10.9.2014

YK